

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): John Plaintiff 1050 Main Street Merced CA 94022 TELEPHONE NO.: (650) 533-2222 FAX NO. (Optional): E-MAIL ADDRESS (Optional): john@example.com ATTORNEY FOR (Name): Self-Representing		To keep other people from seeing what you entered on your form, please press the Clear This Form button at the end of the form when finished.
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Merced STREET ADDRESS: 627 W 21st St MAILING ADDRESS: CITY AND ZIP CODE: Merced CA 95340 BRANCH NAME: Merced County Superior Court		
PLAINTIFF/PETITIONER: John Plaintiff DEFENDANT/RESPONDENT: ACME INC.		
DECLARATION		
		CASE NUMBER:

I am John Plaintiff, and I ask this Court to enter judgment against ACME INC. for \$5,000.00 for failing to perform agreed-upon engine repairs to my vehicle or refund my payment. Despite my efforts to resolve this matter directly, the defendant did not repair the issue or return the funds paid.

On April 1, 2026, I brought my 2021 Mercedes-Benz CLA (VIN: W1K5J4GB7MN123456) to ACME Auto Repair for diagnosis and engine work to fix an engine lifter noise. ACME Auto Repair represented that the issue would be resolved as part of the repair, as stated in their repair invoice and warranty terms (**Exhibit C — Repair Invoice, Exhibit A — Warranty Doc**). I paid \$5,000.00 by check (**Exhibit B — Check Copy**), and they released the vehicle after claiming the repair was complete. Immediately after leaving, I noticed the lifter noise persisted and returned to the shop within two hours with a witness, Janey Do Do, notifying them that the repair was ineffective. I demanded completion of the repair or a full refund, but ACME Auto Repair refused both. I sent a follow-up written demand via email on April 2, 2026 (**Exhibit F — Refund Email**) and later reiterated my demands in writing (**Exhibit H — Demand Letter**). Additional evidence includes **Exhibit D — ABC Estimate, Exhibit E — Check Copy 3, Exhibit G — Email Refund Request, and Exhibit I — 30 Day Warren**.

As a result of ACME Auto Repair's failure to honor their agreement, I have suffered financial harm totaling \$5,000.00, the amount I paid for the incomplete and ineffective repairs. I remain without the promised resolution, forcing me to seek legal intervention to recover my payment.

I request this Court enter judgment in the amount of \$5,000.00 against ACME INC., as the defendant failed to perform their contractual obligations or refund the payment made for unsatisfactory services. This amount reflects the funds paid under the repair agreement and is both fair and justified.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 05/11/2026

(TYPE OR PRINT NAME)

(SIGNATURE OF DECLARANT)

☐ Attorney for ☒ Plaintiff ☐ Petitioner ☐ Defendant
☐ Respondent ☐ Other (Specify):

EXHIBIT A

Warranty Doc

FICTIONAL MOCK-UP

Acme Auto Body

Original repair invoice with warranty

Shop Address: 100 Main Street, Menlo Park, CA 94025	Customer: Paul Andrew
Phone: (650) 555-0142	Vehicle: 2021 Mercedes-Benz CLA
Invoice No.: ACM-040126-117	VIN: W1K5J4GB7MN123456
RO Number: RO-44381	Mileage In: 31,842
Date Opened: March 29, 2026	Mileage Out: 31,847
Date Closed: April 1, 2026	Advisor: John Doe

Customer concern: Engine lifter noise present during warm idle and light acceleration. Customer requests diagnosis and repair of engine noise condition.

Shop representation: Acme Auto Body will diagnose and perform engine work necessary to correct the reported engine lifter noise.

Line	Operation / Part Description	Hours / Qty	Amount
1	Engine noise diagnostic inspection and teardown confirmation	4.0	\$720.00
2	Valve train inspection, lifter inspection, and related engine work	12.5	\$2,750.00
3	Gaskets, fluids, shop materials, and seals	1	\$980.00
4	Road test and final quality control check	1.5	\$550.00

TOTAL PAID: \$5,000.00

30-DAY LIMITED WARRANTY

Acme Auto Body warrants the above labor and installed materials for 30 days from the invoice close date, or 1,000 miles, whichever occurs first. If the warranted repair fails to correct the original engine lifter noise during the warranty period, customer must return vehicle to Acme for inspection and warranty service.

Warranty claim contact: John Doe, Manager.

Customer Signature: _____ Authorized By: John Doe

Payment method: Check No. 1842 cleared in the amount of \$5,000.00 on April 1, 2026.

EXHIBIT B

Check Copy

FICTIONAL MOCK-UP

Check Copy

Front and back of fictional payment check

PAUL ANDREW 2450 Bay Road Menlo Park, CA 94025	Check No. 1842 Date: 04/01/2026
Pay to the Order of: Acme Auto Body	
Amount: ***** Five Thousand and 00/100 Dollars *****	\$5,000.00
Memo: Engine lifter noise repair - 2021 Mercedes-Benz CLA	
Bank: Peninsula First Bank, Menlo Park, CA	<i>Signature: Paul Andrew</i>
: 121000358 009876543210 1842	

BACK OF CHECK

ENDORSE HERE	
For Deposit Only Acme Auto Body Business Account x4421	
Deposited: 04/02/2026	
<i>Bank Processing Stamp: Peninsula First Bank</i>	

EXHIBIT C

Repair Invoice

FICTIONAL MOCK-UP**ABC Auto Body Repair**

Secondary repair invoice showing corrective work

Shop Address: 245 El Camino Real, Redwood City, CA 94063	Customer: Paul Andrew
Phone: (650) 555-0188	Vehicle: 2021 Mercedes-Benz CLA
Invoice No.: ABC-040626-208	VIN: W1K5J4GB7MN123456
Date: April 6, 2026	Service Writer: Maria Lopez

Reason for visit: Customer requests correction of persistent engine lifter noise after prior repair at another shop.

Line	Completed Repair Description	Hours / Qty	Amount
1	Confirm valve train / lifter noise and isolate source	2.5	\$450.00
2	Remove components and complete corrective engine repair for remaining noise	16.0	\$3,450.00
3	Replacement lifter-related parts, gaskets, oil, and filter	1	\$950.00
4	Road test, idle test, and final verification	1.0	\$150.00

Technician notes: Noise verified on arrival. Prior repair did not eliminate original complaint. After corrective engine work, engine operated without the previously reported lifter noise during idle and road test.

TOTAL DUE / PAID: \$5,000.00

EXHIBIT D

ABC Estimate

FICTIONAL MOCK-UP**ABC Auto Body Repair***Corrective repair estimate*

Estimate No.: EST-040426-091	Vehicle: 2021 Mercedes-Benz CLA
Date: April 4, 2026	VIN: W1K5J4GB7MN123456
Prepared For: Paul Andrew	Complaint: Persistent engine lifter noise

Inspection summary: Vehicle presents with same engine noise described by customer. Corrective engine work is recommended to resolve remaining lifter noise condition.

Item	Estimated Work / Parts	Qty / Hours	Estimated Amount
A	Diagnostic confirmation and engine disassembly as needed	3.0	\$540.00
B	Corrective valve train / lifter repair labor	15.0	\$3,225.00
C	Related replacement parts, fluids, and gaskets	1	\$1,085.00
D	Verification road test	1.0	\$150.00

TOTAL ESTIMATE: \$5,000.00*Estimate valid for 15 days.*

EXHIBIT E

Check copy 3

FICTIONAL MOCK-UP

Check Copy

Front and back of fictional payment check

PAUL ANDREW 2450 Bay Road Menlo Park, CA 94025		Check No. 1842 Date: 04/01/2026	
Pay to the Order of: Acme Auto Body			
Amount: ***** Five Thousand and 00/100 Dollars *****		\$5,000.00	
Memo: Engine lifter noise repair - 2021 Mercedes-Benz CLA			
Bank: Peninsula First Bank, Menlo Park, CA		<i>Signature: Paul Andrew</i>	
: 121000358 009876543210 1842			

BACK OF CHECK

ENDORSE HERE	
For Deposit Only Acme Auto Body Business Account x4421	
Deposited: 04/02/2026	
<i>Bank Processing Stamp: Peninsula First Bank</i>	

EXHIBIT F

Refund email

FICTIONAL MOCK-UP

Email to Acme Auto Body

Warranty demand for repair or refund

From	Paul Andrew <paul.andrew@example.com>
To	John Doe <service@acmeautobody.example>
Date	April 2, 2026, 9:14 AM
Subject	Request for warranty repair or refund - 2021 Mercedes-Benz CLA
Regarding	Invoice ACM-040126-117 / Check No. 1842

John,

I picked up my 2021 Mercedes-Benz CLA on April 1, 2026 after Acme Auto Body advised that the engine work was completed and that the engine lifter noise would be fixed. Immediately after leaving the shop, I could still hear the same engine noise.

I returned to Acme approximately two hours later and spoke with you in person. I advised that the noise was still present and asked Acme to complete the repair or refund the \$5,000.00 I paid. Because your invoice includes a 30-day warranty, I am again requesting that Acme either (1) complete the repair so that the original engine noise is corrected, or (2) refund the \$5,000.00 I paid for work that did not resolve the problem.

Please confirm by April 5, 2026 whether Acme will honor its warranty and either schedule the warranty repair or issue the refund.

Paul Andrew

EXHIBIT G

Email refund request

FICTIONAL MOCK-UP

Email to Acme Auto Body

Warranty demand for repair or refund

From	Paul Andrew <paul.andrew@example.com>
To	John Doe <service@acmeautobody.example>
Date	April 2, 2026, 9:14 AM
Subject	Request for warranty repair or refund - 2021 Mercedes-Benz CLA
Regarding	Invoice ACM-040126-117 / Check No. 1842

John,

I picked up my 2021 Mercedes-Benz CLA on April 1, 2026 after Acme Auto Body advised that the engine work was completed and that the engine lifter noise would be fixed. Immediately after leaving the shop, I could still hear the same engine noise.

I returned to Acme approximately two hours later and spoke with you in person. I advised that the noise was still present and asked Acme to complete the repair or refund the \$5,000.00 I paid. Because your invoice includes a 30-day warranty, I am again requesting that Acme either (1) complete the repair so that the original engine noise is corrected, or (2) refund the \$5,000.00 I paid for work that did not resolve the problem.

Please confirm by April 5, 2026 whether Acme will honor its warranty and either schedule the warranty repair or issue the refund.

Paul Andrew

EXHIBIT H

Demand Letter

Paul Andrew
3020 BRIDGEWAY
Sausalito, CA 94965
Paul@innitstreetwear.com | (650) 646-1925

April 22, 2026

ACME iNC -
18 Butler Avenue
ORANGE COUNTY, CA 94022

RE: Demand for Payment — \$1,542.41

ACME AUTO REPAIR owes me \$1,542.41. This letter is a final demand for payment before I file suit.

On April 1, 2026, I, Paul Andrew, took my 2021 Mercedes-Benz CLA (VIN W1K5J4GB7MN123456) to defendant ACME AUTO REPAIR for diagnosis and engine work to correct an engine “lifter noise.” ACME AUTO REPAIR agreed to perform the diagnosis and engine work and represented that the lifter noise would be fixed as part of the repair (per the written estimate/work order and invoice). On April 1, 2026, ACME AUTO REPAIR told me the work was completed and released the vehicle to me, but immediately after leaving the shop, the same engine noise was still present. About two hours later, I returned to ACME AUTO REPAIR with a witness, Janey Do Do, who heard the noise, and I informed ACME AUTO REPAIR that the problem was not fixed. I asked ACME AUTO REPAIR to complete the repair as agreed or refund my payment, but they refused to do further work and refused to refund me.

I demand payment of \$1,542.41. You have until May 6, 2026 to remit payment in full.

Failure to pay by this date will result in a court action filed against you in Orange County Small Claims Court. I will seek the full amount owed, plus court filing fees, service costs, and any other relief the court deems appropriate. I am prepared to file immediately upon expiration of this deadline.

Sincerely,

Paul Andrew

EXHIBIT I

30 day warren

FICTIONAL MOCK-UP

Acme Auto Body

Standalone 30-day limited warranty

Warranty Terms for Invoice ACM-040126-117

Warranty Period: 30 days from April 1, 2026, or 1,000 miles, whichever occurs first.

Covered Repair: Labor and installed materials associated with the engine work performed to correct the reported engine lifter noise on the 2021 Mercedes-Benz CLA, VIN W1K5J4GB7MN123456.

Customer Remedy: If the original repair does not correct the warranted condition during the warranty period, customer may return the vehicle to Acme Auto Body for inspection and warranty service.

Limitations: Warranty excludes unrelated failures, abuse, racing, modifications, accidents, and repairs performed by third parties before Acme inspects the vehicle.

Manager Contact: John Doe, Manager, Acme Auto Body, 100 Main Street, Menlo Park, CA 94025, (650) 555-0142.

Posted shop policy: The customer must notify Acme Auto Body within the 30-day warranty period and make the vehicle available for inspection before seeking outside repairs.